

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 24, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV00361

LARKIN v. PARK & KISS, INC.

(UNOPPOSED) MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

The motion is granted.

The court finds that the settlement falls within a range of reasonableness and is presumptively valid; appears to be a product of serious, informed and non-collusive negotiations; and has no obvious deficiencies. The court grants preliminary approval of the settlement; conditionally certifies the class; and approves the class notice as to form and content.

Counsel should appear to set a final hearing on the question of whether the proposed class action settlement, class counsel’s fees and expenses, the class representative’s enhancement award, and the administrator’s fees and costs should be finally approved as fair, reasonable and adequate as to the members of the settlement class.

No. 26CV01438

NORES v. WILKERSON et al.

(UNOPPOSED) DEFENDANTS ABBEY BILLE WILKERSON AND RODERICK WILKERSON’S DEMURRER TO COMPLAINT

DEFENDANT LIN HOLLIDAY’S DEMURRER TO COMPLAINT

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The demurrers are overruled as moot.

Self-represented plaintiff Kimberley Nores' initial complaint was filed May 1, 2026, and alleges three causes of action against defendants Abbey Bille Wilkerson, Roderick Wilkerson and Lin Holliday related to an allegedly unlawful eviction.

Defendants Abbey Bille Wilkerson and Roderick Wilkerson filed their demurrer to the initial complaint on June 5, 2026. Defendant Lin Holliday filed her demurrer to the initial complaint on June 22, 2026, at 2:33 pm. Plaintiff thereafter filed her first amended complaint on June 22, 2026, at 3:14 pm. Pursuant to CCP §472(a), the demurrers are therefore moot since both address the initial complaint, not the first amended complaint.

No. 18CV03315

WESELOH et al. v. COUNTY OF SANTA CRUZ, et al.

PLAINTIFFS/PETITIONERS' MOTION FOR CHANGE OF VENUE

Plaintiffs' motion is denied.

Plaintiffs seek to change venue pursuant to Code of Civil Procedure sections 394, subdivision (a), and 397, subdivision (b).¹

Section 394, subdivision (a) provides: "An action or proceeding against a county [...] may be tried in the county [...] is situated, unless the action or proceeding is brought by a county [...] in which case it may be tried in any county, or city and county, not a party thereto and in which the city or local agency is not situated. [...] [A]ny action or proceeding brought by a county [...] within a certain county [...] against a resident of another county, city and county, or city, or a corporation doing business in the latter, shall be, on motion of either party, transferred for trial to a county, or city and county, other than the plaintiff, if the plaintiff is a county [...] and other than that in which the defendant resides, or is doing business, or is situated...."

Section 394 has been interpreted to extend to parties to a cross-action as well as the parties to an original action. (*Kennedy/Jenks Consultants, Inc. v. Superior Court* (2000) 80 Cal.App.4th 948, 954-957; *Ohio Casualty Ins. Group v. Superior Court* (1994) 30 Cal.App.4th 444, 448-451.)

Section 397, subdivision (b) provides that the court "may, on motion, change the place of trial" when "there is reason to believe that an impartial trial cannot be had therein."

¹ Further section references are to the Code of Civil Procedure.